

Court No. - 3

Case :- WRIT - C No. - 25511 of 2017

Petitioner :- Satyanarayan

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Harish Chandra Singh

Counsel for Respondent :- C.S.C., Krishna Agarwal

Hon'ble Krishna Murari, J.

Hon'ble Ravindra Nath Kakkar, J.

Heard Sri Harish Chandra Singh, learned counsel for the petitioner and Sri Krishna Agarwal, learned counsel for the respondents no. 2, 3 & 4.

By means of this petition filed under Article 226 of the Constitution of India, the petitioner has challenged the demand notice dated 26.09.2015 issued by the respondent no. 3 and consequential recovery citation dated 8.11.2016.

Sri Krishna Agarwal, learned counsel for the respondents, on the basis of instruction, states that the petitioner was caught for committing theft of electricity and therefore, a provisional assessment was made and when no objection was filed, a final assessment was prepared and on the basis of the same, demand notice has been issued and when the petitioner failed to deposit the amount, the recovery proceeding has been initiated against him.

This Court in **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

As the petitioner has not been afforded opportunity of hearing in the matter as is mandatorily warranted under Clause 6.8 (1)(b) of the U.P. Electricity Supply Code, 2005, and even otherwise, no order of final assessment has been passed containing satisfaction of the authority about service of provisional assessment notice as is required in law, therefore, the impugned recovery proceeding cannot be sustained and is liable to be set-aside.

Consequently, the writ petition is allowed. The impugned demand notice dated 26.9.2015 and consequential recovery citation dated 8.11.2016 are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. The final assessment order will be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar (supra)**.

Order Date :- 31.5.2017

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